

Judgment Sheet
IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

....

Writ Petition No.2738 of 2018.

Akhtar Ali.

Versus

Post Master General

J U D G M E N T.

Date of hearing: **23.06.2022.**

Petitioner by: Mr. Qasim Ali, Advocate.

Respondent by: Khan Ehtisham-ul-Haq Khan,
Assistant Attorney General along
with Muhammad Akbar, Deputy
Senior Postmaster, Layyah.

AHMAD NADEEM ARSHAD, J. Petitioner is aggrieved from the action of respondent whereby his pension was stopped on account of awarding him sentence to ‘***Imprisonment for life***’ as *T’azeer*’ by the learned Additional Sessions Judge, Karor, District Layyah vide judgment dated 01.09.2016 in murder case vide FIR No.370 dated 15.09.2013 registered under Sections 302/34 PPC. He was also held liable to pay Rs.200,000/- as compensation to the legal heirs of deceased in terms of Section 544-A Cr.P.C and in default of payment thereof to undergo further simple imprisonment for six months. Benefit of Section 382-B Cr.P.C was however, extended to the petitioner/convict. In the instant writ petition his prayer was--

“.....that this petition may kindly be accepted and respondent may kindly be summoned in person and directed to do in accordance with law as in envisaged in constitution, and immediately release the petitioner’s pension.”

2. Inessential details apart, petitioner being retired army personnel served Pakistan Armed Forces till 2008 in the capacity as Subdedar. After retirement, he started receiving pension with effect from 01.11.2011. Unfortunately, on earning sentence for imprisonment for life from the Court of Sessions, as mentioned above, his pensionary benefits were withheld by the respondent authority. Record reveals that petitioner challenged his sentence and conviction by filing an appeal before this Court vide Criminal Appeal No.712 of 2016. During the pendency of appeal, petitioner/convict moved application under section 426 Cr.P.C for suspension of his sentence and release on bail till the final decision of the above said criminal appeal. This court vide order dated 17.05.2019 suspended the sentence of the petitioner/convict and directed him to release on bail subject to furnishing bail bonds in the sum of Rs.200,000/- with one surety in the like amount to satisfaction of Deputy Registrar (Judicial) of this Court.

3. After release on bail petitioner/convict moved an application to the respondent to release his pension, however, the same was dismissed by the respondent in terms of Section 25 of the Hand Book of Instructions dealing with payment of Military Pension through Post Offices and Rule 40(1) & (5) of Pension Regulations Volum-II (Army 1986) vide order dated 19.05.2017. Feeling aggrieved by that order petitioner/convict filed the instant writ petition.

4. Learned counsel for the petitioner argued that respondent has wrongly withheld pension of the petitioner as he was booked in a false and frivolous case; further adds that sentence of the petitioner has been suspended by this Court and petitioner has been set at liberty, hence there is no justification for stoppage of his pension and prayed that the same be released while allowing this writ petition.

5. On the other hand, learned Assistant Attorney General for Pakistan has vehemently opposed this petition and prayed for its dismissal.

6. It is settled law that a Government servant, who retires from service qualifying for retirement benefits, pension being a material part of it, does not get the same as bounty of the State but as a right acquired after earning satisfied record of service. However, in order to qualify for pension, the pensioner has to maintain his good conduct which is an implied condition for grant of pension. The grant of pension cannot be refused arbitrarily and if refused, it has to be in accordance with the relevant Rules. There are two conditions provided under Rule 2307 of General Conditions Governing Pension (C.S.R. 351) which empowered the Government to withhold or withdraw the pension or any part of it, where the pensioner is convicted in a serious crime or be guilty of a grave misconduct. For facility of reference, the relevant portion of the Rule is reproduced as under:

“2307. Right to withhold or withdraw pension.- Future good conduct is an implied condition of every grant of pension. The Governor General reserves to himself the right of withholding or withdrawing a pension or any part of it, if the pensioner be convicted for serious crime or be guilty of grave misconduct. The decision of the Governor General on any question of withholding or withdrawing the whole or any part of a pension under this Rule shall be final and conclusive.”

7. In Pension Regulations Volume II (Army 1986) the Federal Government in exercise of the powers conferred by Section 176A of the Pakistan Army Act, 1952 (XXXIX of 1952) introduced following amendments after Chapter V, with regard to reduction or forfeiture of pensions if a military pensioner is convicted in a serious crime by court of law and guilty of grave misconduct in the following terms:-

“ **CHAPTER VI-REDUCTION OR FORFEITURE OF PENSION**

40. **Reduction or forfeiture of Pension of military pensioner who is convicted of a serious crime or is guilty of misconduct:-**

- a. Crime or misconduct not of a political nature. If a military pensioner is convicted of a serious crime by court of law or

is guilty of grave misconduct, which is not of a political nature the following procedure shall be followed:-

- (1) If a pensioner is sentenced to imprisonment for a criminal offence, his pension shall be suspended from the date of his imprisonment and the case shall be reported at once by the pay disbursing office to Audit Office. The later shall take up the case for the orders of the sanctioning authority.
- (2) In case where a pensioner is kept in police or jail custody as an under-trial prisoner and is eventually sentenced to a term of imprisonment for criminal offence, the suspension of pension shall take effect from the date of imprisonment only.
- (3) The sanctioning authority, shall decide the case in consultation with the Audit Officer, and if necessary, with the civil authorities also, whether the offence is a serious one and if so, he shall order the removal of the pensioners name from the pension list, from the date of the commencement of his imprisonment Pension.
- (4) If the sanctioning authority decides that the offence is not so serious as to justify the removal of the pensioner's name from the pension list, it shall not be removed; the payment of arrears of pension due from date of last payment before imprisonment shall be made on release from prison.
- (5) If pensioner is sentenced to imprisonment for criminal offence by a lower Court but is acquitted, on appeal, by a higher court, the pension withheld shall be restored.
- (6) If a pensioner is imprisoned for debt, pension shall continue to be paid.
- (7) If a pensioner is guilty of grave misconduct not falling under the preceding clauses, it shall at once be reported to the sanctioning authority which may, if it considers it justifiable, order, he suspension of his pension from a date to be specified. The sanctioning authority shall subsequently investigate the case in consultation with the Audit Office and the civil authorities, if necessary, and may withhold, reduce or continue the pension in full from a date to be specified by it not earlier than the date of original suspension.

b. **Crime or misconduct of a political nature.** If a pensioner is convicted of a crime or is guilty of misconduct, of a political nature his case shall forthwith be reported by the Audit Office to the sanctioning authority, which on the administration concerned, may order the forfeiture of his pension (service and disability pension, family pension drawn by adult males only, and children's allowance) from a date to be specified. In a case in which the pensioner is sentenced to imprisonment, pension shall pending the order of the sanctioning authority, be suspended from the date of his imprisonment."

Such amendment also provides a procedure for restoration of pension forfeited under the preceding rule, which reads as under:-

“41. Restoration of pension forfeited under the preceding Rule.

A pension reduced, withheld or forfeited under rule 40 or 21 A and 78 of Volume-I of these regulations, may be restored in full or in part by the sanctioning authority in consultation with the local Government or administration concerned in political cases and with Controller of Military Pension and the civil authorities, if necessary, in other cases. In the case of a pensioner undergoing imprisonment any action under this rule shall only be taken on his application after release, but, in no case, shall pension be sanctioned for the period of imprisonment in jail for a serious crime.”

8. Perusal of said provisions it appears that if a pensioner is sentenced to imprisonment for a criminal offence, his pension shall be stopped from the date of his imprisonment and the case shall be reported to the pay Disbursing Authority. The latter shall take up the case for orders of sanctioning authority. In case where a pensioner is kept in police or jail custody as an under-trial prisoner and is eventually sentenced, the suspension of pension shall take effect from the date of conviction. If a pensioner is sentenced to imprisonment by a lower court but is acquitted on appeal by a higher court, the pension withheld shall be restored forthwith. However, in case a pensioner undergoing imprisonment in any criminal case his pension shall be sanctioned for the period of imprisonment in jail till the final decision of case either it may be ended on his conviction or acquittal. Moreover, for suspension of a pension or release/restoration of a pension, the sanctioning authority shall decide the case in consultation with the Audit Officer, Controller of Military Pension and the civil authorities, if necessary.

9. Rule 25 of Hand Book of instructions regarding payment of military pension through Post Offices provides that future good conduct shall be an implied condition of every grant of pensions or allowances, which reads as under:-

“25. Reduction or forfeiture of pensions.---*Future good conduct shall be an implied condition of every grant of pension or allowance. Should the Postmaster become aware of any case in which a pensioner is sentenced to imprisonment, he should forthwith suspend the payment of his pension and report the fact to the C. M. A. (P.) Lahore Cantt. for keeping a note in his records. On release of the pensioner from imprisonment, the Postmaster will obtain an application from the pensioner for restoration of pension*

and submit it to the C. M. A. (P.) Lahore Cantt., with a report on P.A.F.A. 401 together with the following documents:-

- (1) A copy of judgment of the court by which the pensioner was tried and convicted and if an appeal was made, a copy also of the judgment of the appellate court.*
- (2) A memo, showing the dates from and to which the pensioner was actually in prison to be obtained from the Superintendent of the Jail from which the prisoner was released.*
- (3) A list giving particulars of previous convictions if any, against the pensioner to be obtained from the Deputy Commissioner or Collector of the District.*
- (4) A memo, showing the character on discharge from service, length of service and the date from which pensioned as well as the regimental Number of the pensioner as shown in the Descriptive Roll.*
- (5) A memo, showing the date of arrest and the period the pensioner was under Police custody as an under trial prisoner prior to the date of conviction.”*

10. Admittedly, petitioner was convicted/sentenced to ‘**Imprisonment for life**’ in a criminal case, as detailed in para-1 of this judgment. The pension regulations contemplated that if a pensioner is convicted/sentenced his pension is to be forthwith stopped/withheld. Now the question arises if sentence of the pensioner was suspended and released on bail during pendency of his criminal appeal whether he would be entitled to get pensionary benefits or not? The answer of this question is contained under Rule 25 of Hand Book of instructions as discussed supra which provides that when the Postmaster becomes aware of any case in which a pensioner/convict is sentenced to imprisonment, he should forthwith suspend the pension and report this fact to the Controller Military Accounts (Pension) Lahore Cantt. Similarly on release/acquittal of the pensioner from imprisonment, the Postmaster will obtain an application from the pensioner for restoration of pension and submit to the Controller Military Accounts (Pension), Lahore Cantt along with required documents. The Controller Military Accounts (Pension) will further take up the matter for release of pension with Sanctioning Authority.

11. In the case in hand, petitioner’s pension was stopped due to sentence awarded by the learned competent court of law whereby he

was convicted/sentenced to ***Imprisonment for life*** in a murder case. From perusal of above quoted provision of law, it appears that petitioner would be entitled with regard to restoration of his pension only if his criminal appeal is succeeded and as a consequence of which, he is acquitted of the charge by the Court. In this case petitioner is not acquitted from the charge rather he was simply released on bail by this Court while suspending his sentence whereas his Criminal Appeal No.712 of 2016 against conviction and sentence vide judgment dated 01.09.2016 is still pending before this Court. Even otherwise murder is a serious crime which act itself circumvents good conduct of the petitioner as envisaged under Rule 25 of Hand Book of Instructions. Therefore, he is not entitled to get pensionary benefits till the acceptance of his appeal, as mentioned above.

12. Keeping in view the peculiar facts and circumstances of the case, I am of the considered view that respondent was justified to withhold the pension of the petitioner. Learned counsel for the petitioner failed to point out any illegality or irregularity on the part of respondent. Resultantly, this writ petition has no force, the same is accordingly **dismissed**. No order as to costs.

(AHMAD NADEEM ARSHAD)
JUDGE

APPROVED FOR REPORTING.

JUDGE

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